

TRUSTS

IN RE: ROBERT ALLEN AND HAZEL PEARL BILLINGS TRUST

Case Number: 24PB-0032689

This matter is on calendar for further proceedings on a Petition to Modify Trust terms. The matter was continued to allow the filing of an amended Petition or amended proposed trust language. Petitioner has submitted consents from the two remainder beneficiaries of the Trust. With those consents having been filed, the Petition is **GRANTED**. A proposed order was submitted and will be executed by the Court. The clerk is directed to close the file upon processing the order. **No appearance is necessary on today's calendar.**

IN RE: GIVLER TRUST

Case Number: 23PB-0031977

This matter is on calendar for hearing on the Amended Petition for Order Determining Trust's Title to Personal Property, Damages, Double Damages and Attorney's Fees and Costs and for Damages for Elder Financial Abuse. The matter has not been properly noticed. The Petition has been brought under Probate Code Section 850 and therefore the Respondent is entitled to personal service. The Petition seeks monetary damages and therefore, the matter must be served on respondent in the manner for serving summons. Service by mail is insufficient to obtain jurisdiction over the respondent. The Court has previously raised this issue regarding obtaining jurisdiction over respondent. Finally, the Petition fails to sufficiently allege the necessary facts to warrant relief. Petitioner's allegations are based on information and that "with a reasonable opportunity for discovery the evidence will show" that Respondent wrongfully took the funds. The Court cannot grant relief without sufficient factual allegations of the underlying damages. It is likely that an evidentiary hearing will be necessary to establish the amount of damages. This matter is continued to **Monday, June 2, 2025, at 2:30 p.m. in Department 44** for further proceedings on the Amended Petition. Petitioner shall file and timely serve a new Notice of Hearing for the continued hearing date. Respondent must be personally served with the Notice of Hearing and Amended Petition. **No appearance is necessary on today's date.**

IN RE: KADENCE RENEE PODLAS TRUST

Case Number: CVPB20-0030697

This matter is on calendar to confirm filing of the Fifth Account. The Fifth Account has been filed and is noticed for hearing on April 28, 2025. That date is confirmed. Today's hearing has been **VACATED**. **No appearance is necessary on today's calendar.**

IN RE MARIANNE VLASOFF SPECIAL NEEDS TRUST

Case Number: CVPB20-0030839

This matter is on calendar to confirm filing of the Final Accounting. The Final Accounting has not been filed. A noticed Status Report has been filed. The Trustee requests additional time to liquidate the assets and file a Final Account. This matter is continued to **Monday, October 27, 2025, at 2:30 p.m. in Department 44** to confirm filing of the Final Account. **No appearance is necessary on today's calendar.**